

Subcontractor Transaction Coordinator Agreement

Between a transaction coordination team and an independent coordinator who takes files from it

Before you use this. This is a starting template, not legal advice. Rules differ by state, especially on three points: whether a transaction coordinator needs a real estate license, and whether an unlicensed coordinator may be paid only when a file closes; how independent contractors are classified (several states use a strict “ABC” test); and whether non-solicitation clauses can be enforced (California and some other states limit them heavily). Have a local real estate attorney review it and check your broker’s policies before anyone signs.

How to fill it in. Fill in the Key Terms, tick one box wherever there is a choice, and both sign at the end. The numbered sections refer back to the Key Terms by name, so they should not need editing.

Key Terms

Agreement date	
Team (legal business name)	
Team contact name, email and phone	
Subcontractor (name or business name)	
Subcontractor email and phone	
State whose law applies	
Per-File Pay: listing side \$ per file	
Per-File Pay: buyer side \$ per file	
Cancelled-File Pay \$ for an accepted file that does not close	
Payment Window days after a file closes or is cancelled	
Payment method e.g. direct deposit, check, payment app	
Payment timing	☐ The Team pays within the Payment Window whether or not the agent has paid the Team yet ☐ The Team pays within the Payment Window after the agent pays the Team for that file
Business Hours e.g. Mon-Fri 9am-5pm local time	
Response Time hours to reply during Business Hours	



Non-Solicitation Period

months after this agreement ends (12 is common)

Transfer Fee

\$ per agent, optional; leave blank if not offered

Notice Period

days of written notice to end the agreement (14 is common)

Errors and omissions insurance

- ☐ Not required
- ☐ Required, with coverage of at least the amount written in the next line

Minimum coverage (if required)

\$

Terms

1. Purpose

The Team provides transaction coordination to real estate agents. The Subcontractor is an independent transaction coordinator who takes on files from the Team. This agreement sets out how files are offered, how the Subcontractor is paid, and how both sides look after the agents and clients they serve together.

2. Independent contractor

The Subcontractor runs their own business. They choose their own hours, methods and place of work, as long as file deadlines and the standards in Section 9 are met. The Subcontractor is not an employee, partner or agent of the Team, and does not take part in any health, retirement or other benefit plan the Team provides its own employees.

The Team does not withhold income tax, Social Security or Medicare tax from the Subcontractor's pay, and does not carry workers' compensation or unemployment insurance on the Subcontractor's behalf. The Subcontractor is responsible for their own income and self-employment taxes, and for workers' compensation coverage where their state requires it. The Team will issue a Form 1099 where required.

The Subcontractor is free to work for other clients, subject to Section 8.

3. Offering files

The Team offers files one at a time. The Subcontractor may accept or decline any file without giving a reason. Once accepted, the Subcontractor carries the file through to closing or cancellation, unless both sides agree to hand it off. The Team shares the contract, contacts and any notes it has when it offers the file.

4. Scope of work

On an accepted file, the Subcontractor tracks deadlines, collects and organizes documents, keeps the agent and other parties updated, coordinates scheduling, and keeps notes in the Team's system so that another coordinator could pick up the file.

The Subcontractor does not: perform any activity that requires a real estate license, unless licensed in that state and permitted by the agent's broker; give legal, tax or lending advice; negotiate terms; hold or move earnest money or any other client funds; sign any document on someone else's behalf; or send, confirm or change wiring instructions.

5. Pay

The Team pays the Per-File Pay for each file the Subcontractor carries to closing, and the Cancelled-File Pay for an accepted file that does not close after the Subcontractor has started work on it. Payment is made by the Payment method, within the Payment Window, on the Payment timing chosen in the Key Terms.



If a file is handed off partway through, both sides agree a fair split in writing at the time. If they don't, the pay for that file is split evenly.

The Team gives the Subcontractor at least 30 days' written notice of any change to pay, and a change applies only to files offered after the notice period.

6. Expenses and tools

The Subcontractor supplies their own computer, phone, internet and software at their own expense. If the Team requires the Subcontractor to work in a particular system (for example, the Team's transaction software or a shared inbox), the Team provides and pays for that access. The Team reimburses file expenses it approved in advance, such as couriers. Beyond that, each side pays its own business costs.

7. Client information

Client information means anything learned through a file: names, contact details, financial information, contracts, and correspondence. The Team's own templates, checklists and pricing are also confidential.

The Subcontractor uses this information only to do the work; keeps it in the Team's systems or other secure storage; uses strong, unique passwords and two-factor sign-in where available; does not forward it to personal accounts; and tells the Team within 24 hours of any suspected breach or wire-fraud attempt.

When this agreement ends, the Subcontractor returns or deletes all client information within 10 days and confirms that in writing. This section continues after the agreement ends.

8. Non-solicitation

Agents the Subcontractor meets through the Team are the Team's clients. While this agreement is in place, and for the Non-Solicitation Period after it ends, the Subcontractor will not ask for, or accept, transaction coordination work directly from any agent they worked with through the Team in the last 12 months of this agreement, unless the Team agrees in writing or the Subcontractor pays the Transfer Fee for that agent (if one is set in the Key Terms).

This does not apply to: agents listed in Schedule A, who were the Subcontractor's clients before joining; general advertising that is not aimed at the Team's agents; or an agent who stopped using the Team at least 90 days before contacting the Subcontractor, where the Subcontractor did not encourage the move.

It works both ways. The Team will not approach a Schedule A agent for its own business unless the Subcontractor has marked that agent as shared.

Nothing here limits an agent's own choice of coordinator. It limits only what each side does to win that agent's business.

9. Standards of work

The Subcontractor replies to agent and client messages within the Response Time during Business Hours; tells the Team right away when a deadline is at risk; gives the Team at least 3 business days' notice of planned time away (and as much notice as possible in an emergency) so that files are covered; follows each broker's compliance requirements; and keeps file notes current.

10. Insurance

If the Key Terms require errors and omissions insurance, the Subcontractor keeps at least the minimum coverage in place while this agreement lasts and provides proof on request.

11. Liability

Each side is responsible for its own work. When something goes wrong on a file, both sides first work together to put it right.

Neither side is liable to the other for more than the pay for the file involved, except for gross negligence, intentional misconduct, or a breach of Section 7. Each side covers claims brought by others that result from its own negligence or breach of this agreement.



12. Termination

Either side may end this agreement for any reason by giving written notice (email counts) of at least the Notice Period, or immediately for a serious breach such as misuse of client information or dishonesty.

For open files, the two sides agree either that the Subcontractor finishes them on the usual pay, or that the Subcontractor hands them off with complete notes and documents within 2 business days, with pay split under Section 5. The Team pays everything earned. Sections 7, 8, 11 and 13 continue after this agreement ends.

13. General

This agreement is governed by the law of the State in the Key Terms. It is the whole agreement between the two sides on this subject, and changes must be in writing and signed by both. If any part can't be enforced, the rest still applies and that part is enforced as far as the law allows.

Neither side may transfer this agreement without the other's written consent, except that the Team may transfer it to a business that takes over the Team. Notices go to the email addresses in the Key Terms. Electronic signatures and signed copies count as originals.

If a disagreement comes up, the two sides talk first, then try mediation in the State before going to court, except where urgent action is needed to protect client information.

Signatures

Each person signing confirms they have authority to sign for the party named.

Team

Signature

Printed name

Title

Date

Subcontractor

Signature

Printed name

Title

Date



Schedule A: Subcontractor's own agents

Agents the Subcontractor worked with before this agreement. They stay the Subcontractor's clients and are not covered by Section 8. Tick "Shared" for any agent the Subcontractor is happy for the Team to also work with.

Agent name	Brokerage	Shared
		☐
		☐
		☐
		☐
		☐
		☐
		☐
		☐

